

Format requirements: Act and/or practice & Coverage

Pillar_ID	Indicator_ID	Act and/or practice	Coverage
2		Public procurement of ICT goods and online services	
2	2.1	Result of the public tender for central government procurement of electronic information products of 2014 (Vol.21, GC-HJ140283) 2014年中央政府采购电子信息产品公开招标结果 (Vol.21, GC-HJ140283)	Foreign security providers for antivirus software
2	2.3	Directive Number 618 "Notification Regarding the Launch of National Indigenous Innovation Product Accreditation Work for 2009" 《关于开展2009年国家自主创新产品认定工作的通知》 Notice Launching the National Indigenous Innovation Product Accreditation Work for 2010 《关于开展2010年国家自主创新产品认定工作的通知》	Computers and application equipment; communications products; modern office equipment; software, energy efficient products, new energy equipment
2	2.3	Government Procurement Law of the People's Republic of China (Order of the President No.68) 中华人民共和国政府采购法 (主席令第68号)	Horizontal

Act and/or practice

- **Include:** English translation, official language (optional), year, number of the law
- **Exclude:** Article/provision number
- **Semicolon**

Coverage

- **Horizontal:** when the measure is applied to all sectors
- **Semicolon**

Format requirements: Impacts or comments on Acts or practices

Pillar_ID	Indicator_ID	Act and/or practice	Impact or comments on Acts or practices
4		Intellectual Property Rights (IPRs)	
4	4.1	Patent Law of the People's Republic of China (Amended in 2020) 《中华人民共和国专利法（2020年修订）》	Article 18 of the amended Chinese Patent Law establishes that non-resident foreigners or organizations without business establishments in China shall entrust the patent agency established by law to handle patent applications or other patent-related matters in China. Article 19 provides that any entity or individual intending to file a patent application in a foreign country for an invention or utility model completed in China shall submit a request for confidential examination to the patent administration.
4	4.4	Copyright Law of the People's Republic of China 《中华人民共和国著作权法》	Article 24 of the Copyright Law of China outlines an exhaustive list of copyright exceptions. In particular, the third amendment (2020) introduced a new catch-all provision, allowing other statutes and administrative regulations to specify other forms of fair use. The exceptions include: (1) use of a published work of another for purposes of personal study, research or appreciation;
4	4.6	Signature of the WIPO Copyright Treaty	Accession to the WIPO Copyright Treaty since 2007
4	4.9	Anti-Unfair Competition Law	China has not legislated a unified law specifically directed to trade secret protection. So far in China, the laws related to trade secret protection scatter across the Anti-Unfair Competition Law (revised in 2019); the Civil Code (effective in 2021), the Civil Procedure Law (revised in 2017); the Labour Law (revised in 2018); and

- **Be specific:** Cite the section/chapter, article/clause numbers that are relevant to the indicator
- **Exclude:** secondary resources information
- **When there is no relevant law/regulation:** provide informative statement
- **Indicators about signatory status:** status information + detail (if any)

Format requirements: **Timeframe & Reference**

Pillar_ID	Indicator_ID	Act and/or practice	Timeframe	References
6		Cross-border data policies		
6	6.1	Personal Financial Information Protection Technical Specification 《个人信息金融信息保护技术规范》	Since May 2011; Since February 2020	https://www.weiyangx.com/351251.html https://e.linklater.com/67/921/downloads/20200304-pboc-publishes-new-
6	6.1	Interim Measures for the Administration of Online Taxi Booking Business Operations and Services 《网络预约出租汽车经营服务管理暂行办法》	Since July 2016, last amended in December 2022	http://www.ft.com/intl/cms/s/0/d08338b6-6fde-11e5-ad6d-f4ed76f0900a.html#axzz3wTfZMxN http://www.cnbc.com/2016/07/28/uber-didi-hail-chinas-new-taxi-app-rules.html
6	6.5	Lack of participation in agreements with binding commitments on data flows	Last reviewed in August 2023	https://www.unilu.ch/en/faculties/faculty-of-law/professorships/burri- https://www.secrss.com/articles/50727

Timeframe

- **Include:** Month and year (came into force), time of amendments (if any)
- **Indicators about signatory status:** (if **yes**) provide the time when the agreement came into force in the economy; (if **no**) enter “Last reviewed in [current time]”
- **Semicolon**

Reference

- **Broken link:** replace with new links
- **One reference per one column**

Other general format requirements

- Add Rows Based on the Number of Measures Found** - In the main dataset, each indicator covers at least one row. The **number of rows should be added based on the number of measures found**.

16	2	2.3	1.00	1.00	Australian Industry Participation Australian Jobs Act 2013 No.13	Horizontal	Starting with the Australian Government Procurement Statement in July 2009, the Federal Labor Government enacted a series of measures designed to enhance Australian industry participation in Australian Government procurement. The Statement strengthened the Australian Industry Participation framework by requiring participants in large Commonwealth tenders (generally AUD 20 million (approx. 17.8 million USD) or more) and infrastructure projects to prepare and implement Australian Industry Participation (AIP) Plans. Additional support was provided in the May 2011 Budget to fund the implementation of the Australian Industry Participation (AIP) Plans. Additional support was provided in the May 2011 Budget to fund	Since 2009 Since 2013, last amended in 2021	Official text: https://www.legislation.gov.au/Details/F2023L00766
	2	2.3	1.00	Commonwealth Procurement Rules 2023 Digital Marketplace	Horizontal	The Commonwealth Procurement Rules (CPRs) provide that the "the Australian Government is committed to non-corporate Commonwealth entities sourcing at least 20 percent of procurement by value from SMEs" and "has a target of non-corporate Commonwealth entities procuring 35 percent of contracts by volume, with a value of up to AUD 20 million (approx. 17.8 million USD), from SMEs" (CPRs 5.6, 5.7). Within this framework, it appears that the government aims for a certain share of SMEs participation in major procurement of information and communication technology (ICT) products and services with an expected contract value of AUD 20 million (approx. 17.8 million USD) or more. The	Since 2023 Since 2016	https://www.legislation.gov.au/Details/F2023L00766 https://www.finance.gov.au/sites/default/files/2023-06/Commonwealth%20Procurement%20Rules	
17	2	2.3	1.00	Indigenous Procurement Policy 2015	Horizontal	The Commonwealth Indigenous Procurement Policy (IPP) was issued in 2015. It works through: 1. Annual targets for the volume and value of contracts to be awarded to Indigenous enterprises by the Commonwealth and each Portfolio. 2. The Mandatory Set Aside (MSA) requires that Indigenous businesses be given an opportunity to demonstrate value for money before a general approach to market. The MSA applies to procurements to be delivered in remote Australia and for all other procurements wholly delivered in Australia	Since March 2015	Official text: https://www.niaa.gov.au/sites/default/files/publications/pp-guide_0.pdf (Revised in December 2020)	
18	2	2.3	1.00						

- Make Sure the Format is Consistent** - When cite the same measures or laws, their names and timeframe should be **consistent throughout the database**.
- Make Traceable Changes** – When adjusting the database, please ensure that these modifications are easily identifiable and distinct from the existing content. It is recommended to **use a different color for any new information added** to the sheet and to use **strikethrough-text** for information that is to be removed.